BETMON INVESTMENTS (PRIVATE) LIMITED
versus
THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL PROVINCE
and
G & W INDUSTRIAL MINERALS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
ZHOU & CHIKOWERO JJ
HARARE, 13 November 2025 & 15 January 2026

Civil Appeal

B. Maunze for the appellant
Ms *N. Y. Motsi* for the second respondent

ZHOU J: This an appeal against a decision of the first respondent made in terms of s 361 of the Mines and Minerals Act [*Chapter 21:05*]. The decision was to the effect that the second respondent be allowed to enjoy mining rights to the exclusion of the appellant over blocks of claims under Registration Number 41445BM and 41446BM, and that the registration of the said claims in favour of the appellant be cancelled. The cancellation was to take effect on 9 April 2025.

The appeal is opposed by the second respondent. In addition to contesting the appeal on the merits, the second respondent raised two preliminary points, one of which was abandoned during the hearing. The objection that was abandoned was the one based on the contention that no decision had been made by the second respondent which could be the subject of an appeal, but that only an intention had been expressed. The second respondent persisted with the objection that the matter is not properly before this court, contending that the appellant ought to have appealed to the Minister in terms of s 50 (2) of the Mines and Minerals Act. We dismissed the objection and indicated that the reasons for the dismissal would be contained in the final judgment.

The right of appeal to the High Court against any decision of the first respondent is provided for in s 361 of the Mines and Minerals Act, which states:

> "Any party who is aggrieved by any decision of a mining commissioner's court under this Act may appeal against such decision to the High Court and that court may make such order as it deems fit on such appeal."

The entitlement to appeal to this court is therefore not ousted by the right to appeal to the Minister. At best that course is but a domestic remedy provided by law. This Court retains its discretion as to whether or not to entertain a matter brought before it before domestic remedies are exhausted. The substance of the instant appeal involves an inquiry into whether or not the first respondent complied with the order of this court granted in Case No. HCH2090/22. This court is the appropriate forum for such an inquiry to be undertaken. For these reasons, the objection to the court's jurisdiction is without merit hence it was dismissed.

On the merits, the factual background to this matter is as follows: The appellant and second respondent are involved in a dispute over mining claims bearing the registration numbers 41445BM and 41446BM. Following referral of the dispute to the first respondent's office, a ground survey was conducted to determine if the claims belonging to the appellant and those of the second respondent were overlapping such that the one was encroaching onto the mining claims of the other. A report was produced following the survey. The report observed that the mining sites of the two contending parties were 2.9 kilometres apart. It further found that the second respondent was the one who was encroaching on the appellant's claims. Thereafter the appellant approached this court for an order that the first respondent must determine the dispute between the parties based on the existing information in the files of the parties.

The first respondent determined that the second respondent was the first in title because its claims were pegged in 1996 while the appellant only got registration over the disputed blocks in 2017. Consequently, he ordered that the appellant's registration be cancelled in respect of Block Numbers 41445BM and 41446BM. This is the determination which is the subject of the instant appeal.

At the hearing of the matter the appellant, through counsel, informed the court that it is abandoning its third ground of appeal. Reliance was placed on the first, second and fourth grounds of appeal in seeking to overturn the determination by the first respondent. The first ground of appeal attacks the first respondent's determination for coming to a conclusion that

is inconsistent with the empirical survey done by his own officials in the absence of any other report to contradict it. It is common cause that the ground survey done in July 2018 noted that the disputed mining block was inside the registration position of the appellant. It concluded that the second respondent's ground position did not conform to its registration position. The report further held that the second respondent's blocks are not on registration position on the ground and that the disputed area is 2.9 kilometres from the second respondent's registered positions. In short, the survey concluded that the second respondent is the one who encroached on the appellant's claims. There is no other ground survey that was done after that. There is therefore no survey which contradicts the findings of the survey done in 2018. It is difficult to follow the reasoning of the first respondent which made him disregard the findings of the survey. For these reasons, the ground of appeal must be upheld.

In the second ground of appeal the appellant contends that the first respondent grossly erred and misdirected himself by failing to uphold the forfeiture of 3 June 2006 (Forfeiture 5/2006) of blocks 29680BM and 29681BM. It is common ground that the blocks bearing the numbers 29680BM and 29681BM were forfeited in 2006. The blocks which are the subject of the instant dispute, 41445BM and 41446BM were a re-peg of the forfeited blocks. The forfeiture of 2006 has not been set aside or reversed. The second respondent's claims are not based on the forfeiture that took place in 2006. Instead, he relied on the 1996 registration. The first respondent cannot legally set aside the appellant's registration without setting aside or revisiting the forfeiture. For these reasons too, the decision to cancel the appellant's registrations cannot stand.

The fourth ground challenges the application of the "first in time, first in right" principle by the first respondent. The appellant contends that the first respondent fell into the error of proceeding on the premise that the parties' claims were registered on common ground or within the disputed area contrary to the observation by the 2018 survey that their claims were 2.9 kilometres apart.

The principle that a person who obtains rights first in time is the stronger in law, is expressed in the Roman maxim *qui prior est tempore potior est jure*. It applies to double or multiple sales and any other double or multiple allocation situation. Its effect is that in a situation of double or multiple sales or allocations the first purchaser must be given priority unless there are special circumstances affecting the balance of equities. See *Barros & Anor* v *Chimphomda* 1999 (1) ZLR 59(S) at 61D-G; *Crundall Brothers (Pty) Ltd* v *Lazarus NO &*

Anor 1991 (2) ZLR 125(S) at 133A-B; *Guga v Moyo & Ors* 2000 (2) ZLR 458(S) at 459E-H; *Mwayipaida Family Trust* v *Madoroba & Ors* 2004 (1) ZLR 439(S) at 443F-444C.

However, that principle has no application *in casu*. This is because there was no double allocation of the claims in question. At the time that the appellant was allocated the blocks same had not been allocated to any other person after the 2006 forfeiture. The survey of July 2018 established that the second respondent's claims are 2.9 kilometres from the blocks pegged by the appellant. What is established by that survey is encroachment by the second respondent rather than a double allocation of the blocks. There was therefore no factual or other scientific basis for the first respondent to invoke the principle *qui prior est tempore potior est jure*.

In all the circumstances, the appellant has managed to show the errors committed by the first respondent in his determination of the matter.

In the result, IT IS ORDERED THAT:

1. The appeal be and is allowed.
2. The determination of the first respondent that the appellant's Blocks or Claims under Registration Numbers 41445BM and 41446BM be cancelled be and is set aside, and the following is substituted:

   "(a) Betmon Investments (Private) Limited is recognised as having lawfully acquired mining rights over the claims with registration numbers 41445BM and 41446BM.

   (b) G & W Industrial Minerals (Private) Limited , and all persons acting through it or on its behalf be and are hereby interdicted and restrained from interfering in any manner with the mining operations of Betmon Investments (private) Limited at the claims under registration numbers 41445BM and 41446BM."

3. The second respondent shall pay the costs of this appeal.

ZHOU J:. . . . . .

CHIKOWERO J agrees . . . . . .

Masiya-Sheshe & Associates, appellant's legal practitioners

B. Chipadza Law Chambers, second respondent's legal practitioners